

HR-POL-7171: Litigation Readiness & Legal Hold Protocols

71.1 Legal Hold Trigger Events

A **Legal Hold** is initiated if:

- Litigation is threatened or filed,
- A government inquiry is anticipated,
- Legal counsel issues a preservation directive.

71.2 Immediate Effects of Legal Hold

While a Legal Hold is active:

- All document deletion is suspended,
- HR actions affecting involved employees are **paused**,
- AI agents must stop learning from affected data.

71.3 Supremacy Clause

Legal Holds override:

- Grievance locks (HR-POL-2626),
- Exit processing (HR-POL-1414),
- Cooling-off periods (HR-POL-3232).

They may only be lifted by Legal Counsel.

HR-POL-7272: Government Investigations & Regulatory Cooperation

72.1 Investigation States

Employees may be tagged as:

- Witness,
- Subject,
- Non-involved.

72.2 Operational Restrictions

Employees marked as ****Subject****:

- Cannot be promoted or transferred,
- Cannot invoke emergency overrides,
- Retain leave rights unless legally restricted.

72.3 Cooperation Integrity Rule

Failure to cooperate with investigators:

- Triggers a Critical Behavioral Flag,
- Overrides Trust Index recovery mechanisms.

HR-POL-7373: Psychological Safety vs Performance Enforcement

73.1 Psychological Safety Indicators

Indicators include:

- Anonymous feedback trends,
- Attrition signals,

- Burnout Risk Flags (HR-POL-1111).

73.2 Enforcement Tension Clause

If strict enforcement:

- Improves metrics,
- But degrades psychological safety indicators,

AI agents must:

- Reduce enforcement aggressiveness,
- Escalate to Human Review for recalibration.

73.3 Non-Retaliation Reinforcement

Actions taken to preserve psychological safety:

- Cannot be cited as performance weaknesses,
- Must not affect promotion or incentive eligibility.

HR-POL-7474: AI Liability, Attribution & Indemnification

74.1 Decision Attribution

All AI-assisted decisions must be attributable to:

- A specific model version,
- A policy set version,
- A human owner.

74.2 Liability Boundary

AI systems:

- Provide recommendations only,
- Do not bear legal responsibility.

Final accountability rests with:

- Designated human approvers,
- Executive governance bodies.

74.3 Indemnification Constraint

AI agents must not:

- Generate advice contradicting Legal guidance,
- Attempt to optimize outcomes at legal risk.

HR-POL-7575: Reputational States & Irreversible Soft Outcomes

75.1 Reputational State Definition

Employees may enter a ****Reputational State**** due to:

- Public incidents,
- High-profile investigations,
- External media exposure.

75.2 Effects of Reputational State

While active:

- Leadership-track eligibility is suspended,
- External representation duties are revoked,
- Performance metrics are deprioritized.

75.3 Irreversibility Clause

Some reputational impacts:

- Cannot be fully reversed,
- May decay slowly over time,
- Persist independently of formal clearance.

HR-POL-7676: External Communications & Information Asymmetry

76.1 Communication Control

During sensitive periods:

- Employees may be restricted from public statements,
- Internal communications may be monitored for leakage risk.

76.2 Asymmetry Acceptance Rule

Employees:

- May not receive full information due to legal constraints,
- Must comply with directives despite partial transparency.

76.3 Conflict Clause

Information asymmetry:

- Does not excuse policy violations,
- Must be considered during disciplinary assessments.

HR-POL-7777: Moral Injury, Ethical Stress & Long-Term Care

77.1 Moral Injury Recognition

Moral injury may arise when:

- Employees are forced to act against personal ethics,
- Compliance conflicts with values.

77.2 Mitigation Measures

Mitigation may include:

- Counseling access,
- Role reassignment,
- Temporary performance expectation adjustments.

77.3 Boundary Rule

Ethical stress:

- Does not justify misconduct,
- May mitigate penalties where intent is non-malicious.

HR-POL-7878: Policy-Induced Harm & Organizational Accountability

78.1 Harm Detection

Harm may be:

- Individual,
- Collective,
- Reputational.

Detected via:

- Trend analysis,
- External audits,
- Whistleblower input.

78.2 Accountability Assignment

If harm is policy-induced:

- Responsibility shifts to governance bodies,
- Individual penalties must be reviewed.

78.3 Remediation Priority

Remediation must prioritize:

1. Harm reduction,
2. Trust restoration,
3. Policy correction.

HR-POL-7979: End-of-Career Transitions & Dignity Safeguards

79.1 Late-Career Classification

Employees within **24 months of retirement eligibility** enter a Late-Career state.

79.2 Protective Measures

Late-Career employees:

- Are excluded from aggressive performance enforcement,
- Must not be placed on PIP unless misconduct occurs.

79.3 Succession Balance Clause

Protections:

- Must not block succession planning,
- Require careful transition design.

HR-POL-8080: Organizational Identity, Values & Non-Optimization Zones

80.1 Non-Optimization Zones

Certain areas must not be optimized aggressively:

- Ethics,
- Safety,
- Human dignity,

- Trust.

80.2 AI Restraint Rule

AI agents must:

- Recognize non-optimization zones,
- Prefer conservative, human-centric outcomes.

80.3 Violation Consequence

Optimization attempts in forbidden zones:

- Trigger immediate governance review,
- May require system rollback.

Final Governance Axiom (FGA-Ω)

The system exists to:

- Serve people,
- Protect the organization,
- Withstand external scrutiny.

Any decision that is ****technically correct but ethically indefensible is invalid****.

When uncertainty is irreducible, ****human judgment is mandatory****.
